Louisa County Water Authority
Board of Directors
June 14, 2023

MEMBERS PRESENT: Mr. Judson Foster, Chairman; Mr. Douglas Smith, Vice-Chairman; Mr. Bob Hardy; Mr. Tom Filer; Mr. David Kies; Mr. Robert Morgan; Mr. Byron Wilson

OTHERS PRESENT: Ms. Pam Baughman, General Manager; Mr. Phil Bailey; Mr. Cody Langridge, Water Operations Manager; Mr. Kyle Eldridge, Assistant County Attorney; Mr. Douglas Weimer, Intern County Attorney's Office

A. Call to Order

Chairman Foster called the meeting to order at 6:01 pm.

1. ADOPTION OF THE AGENDA

Chairman Foster asked if there were any changes or additions to the agenda. The General Manager asked to add a Presentation item recognizing Phil Bailey for his years of service. Mr. Hardy made a motion to adopt the agenda as amended. The motion was seconded by Mr. Morgan and carried 7-0.

B. Presentations

Mr. Phil Bailey was presented with a resolution recognizing his years of service to Louisa County Water Authority.

C. Citizen Information

D. Consent Agenda

2. APPROVAL OF THE MINUTES:

A. MAY 10, 2023 – REGULAR BUSINESS MEETING

3. TREASURER'S REPORT:

A. O & M REPORT / CAPITAL REVENUE & EXPENDITURE REPORT – MAY 2023
B. APPROVAL OF DISBURSEMENTS – MAY 2023
C. CONSTRUCTION FUND – MAY 2023

The Board reviewed the Consent Agenda, including the Treasurer's Report. Upon completion of the review, Mr. Hardy made a motion to approve the Consent Agenda and Treasurer's Report. The motion was seconded by Mr. Kies and carried 7-0.

E. Old Business

4. UPDATE – JAMES RIVER WATER PROJECT

June 14, 2023 – Update:

a. Due to new regulations passed in June 2023, the Department of Marine Resources Committee is no longer requiring James River Water Authority to have a permit issued by their department.
b. There has been some back and forth between the Department of Environmental Quality and AquaLaw regarding the with drawl permit. Two updates have been provided to the department relating to changes in the construction plans. AquaLaw is expecting a draft permit to be issued to James River Water Authority by July 1, 2023, for review. Once the review is completed and has been accepted, the permit will be published for public comment for 30 days. Due to the change in the DMRC permitting process, DEQ is trying to determine how to move forward with out DMRC approval, as has been the normal process in the past.
c. The Army Corps of Engineering permit has experienced a change in project managers at the Corps level. Two meetings previously scheduled with the Corps and AquaLaw have been cancelled. There is a meeting scheduled for this afternoon. AquaLaw is hoping for a consolidated review process and catching up on the original timeline of late spring to early summer, since the Phase I & II and Treatment Plan work has already been reviewed. A 30-day review should be completed by interested parties such as the Monacan Tribe, Canal Keepers, etc. An optimistic timeline for receiving the Army Corps permit is 60 days from today, or mid-August 2023.
d. Property acquisition and utility coordination are moving forward.

e. The Phase III archeological resources study is moving forward for issuance of a request for proposal to complete the work. The RFP timeline is RFP for advertisement by June 30, 2023, archeological work to be completed by December 31, 2023.
f. Faulconer is working on right-of-way acquisitions and preparing plats for property owners. A Faulconer representative stated, "Property acquisitions are moving along".

5. NORTHEAST CREEK WATER TREATMENT PLANT – NECWTP SEDIMENTATION BASINS IMPROVEMENT (SLUDGE-VAC-SYSTEM UPDATE)

The Board reviewed the letter from the Virginia Department of Health – Office of Drinking Water dated May 17, 2023. VDH is still requesting the pump specifications, there is no pump. The engineer responded to VDH. As of today, we are scheduled to receive the permit early next week. Hopefully this will enable us to go to bid before the end of the month so we can meet our anticipated construction timeline of this fall if the equipment is readily available. If the equipment is not readily available, this project could be delayed another year.

6. ZION CROSSROADS WELL SYSTEM UPDATES

A. SPRING CREEK - #1 & #2- UPDATE

All the water line and conduit has been installed. The site backfilled, seeded and strawed. The electrician will be pulling the wire. The pad for the generator, connecting the wiring, and the interior plumbing are the remaining items to be completed.

B. POORE WELLS – FILTER – UPDATE

The filter line has been replumbed and as soon as staff have enough free time to watch the pressures, the water will be sent through the filters. Staff does not want to damage anything additional by letting it run without being supervised.

7. REGIONAL OPTIMIZATION AND PROCESS OPERATIONS STUDY

We have been told that the draft report will be received within two weeks.

8. ZION CROSSROADS WWTP DIESEL TANK ADDITION FOR GENERATOR

Still waiting on the tank.

9. NEW TRUCK PURCHASE; SNOWPLOW AND 100-GALLON DIESEL TRANSFER TANK

We should have the truck within two weeks! It arrived in May, but they were waiting for a computer chip to be delivered.

10. OPEN POSITIONS

A. MAINTENANCE TECH

On Monday, June 5, 2023, two interviews were conducted without great results. We received two more application today, hopefully the position will be filled before the end of the month.

11. UPDATE – LAKE ANNA ENVIRONMENTAL WWTP

A. LAKE ANNA SYSTEM - WELL #1 INSPECTION AND EVALUATION

B. LAKE ANNA SYSTEM – WELL #1 PROPOSAL FOR RECOMMENDATIONS IN INSPECTION AND EVALUATION REPORT

At approximately 9:00pm on Friday, June 9, 2023, it was reported to dispatch that a boat snagged the Lake Anna WWTP effluent line with an anchor. This is reported to have caused damage to the pipe and pulled it away from the bottom of the lake. Emergency buoys were put into place on Saturday, June 10, 2023, warning boaters of potential damage. Staff continue to work with the Department of Environmental Quality to formulate a plan to repair the pipe and reattach it to the bottom of the lake. Both Spotsylvania and Louisa counties were notified, and a press release went out on Monday, June 12, 2023.

On June 16, 2023, an inspection on the pressure tank will be conducted. Staff are determining when the effluent line into the lake will need to be inspected.

Well #1 at Lake Anna was inspected and evaluated May 18, 2023. A camera inspection was conducted on the well and the only issue seen was a seal will need to be replaced when / if any work takes place on the well. The evaluation cost $4,800. To conduct a 48 hour draw down test, the

sampling and a total dynamic head pressure will cost $20,740. The well will provide a backup source if well #2 is out of commission and it can be run in rotation with well #2.

The Board discussed whether to proceed with the 48 hour draw down test, the sampling and determination of the total dynamic head pressure.

On Friday, June 9, 2023, the General Manager was notified that a boat anchor snagged the effluent line from the Lake Anna WWTP. Causing part of the line to float 3" from the surface of the lake. On Saturday, June 10, 2023, Tow Boat U.S. was contacted to put hazard buoys in place to identify the floating pipe as a hazard to boaters and skiers. Staff worked with the Department of Environmental Quality to gather some information on the effluent line as well as scour documents we have received from the previous owner.

Previous inspections indicate that the line is estimated to be 600 ft. in length, while other documents indicate the pipe is as much as 2,000 ft. in length. Other than the pipe is 6" and made of high-density polyurethane, not much information has been able to be located.

The previous inspector is unable to make bigger repairs, so staff has asked Tow Boat U.S. to inspect the pipe and report the repairs needed. At 11:00 am today, Tow Boat U.S. called to inform staff that they were in the water and have found many boat strikes and the pipe is much longer than 600 ft. Once the needed repairs have been identified, Tow Boat U.S. will make the repairs. Tow Boat U.S. is registered with the Department of Environmental Quality to make these types of repairs.

12. UPDATE – CLEARWELL ROOF / BASEMENT FLOOR DRAINAGE

On June 26, 2023, the engineers, the contractor (Distinguished Designs LLC) and Authority staff will hold a kick-off meeting on June 26, 2023. Completion of the project may occur by the end of July.

13. UPDATE – NANOFILTRATION GRATING EVALUATION / UPGRADE TO ACCESS / PALLET JACK

The access has been regraded and paved. The grating supports have been delivered and are expected to be installed on June 22, 2023.

14. WATER SUPPLY EMERGENCY ORDINANCE

A. PROPOSED EMERGENCY RATE SCHEDULES

At the June 5, 2023, Board of Supervisors meeting, the Water Supply Emergency Ordinance was approved.

The Board reviewed the proposed Water Supply Emergency Rates.

Upon completion of the review, the Board directed the General Manager to draft the Water Supply Emergency Rates into a Public Hearing Notice for consideration at the July 2023 Board of Directors meeting. Other rates to be considered at the public hearing are for raw water sales and hydrant water sales.

15. LEAD SERVICE LINE INVENTORY

Guidance was received on May 22, 2023. The Authority's Lead Service Line Replacement Plan is complete. The data gathering sheet and the access agreement are complete. The spread sheet has been populated; Nellie will begin narrowing down the customers we will need to conduct a physical inspection of their lead service lines. Staff is hopeful that by this fall the physical inventory will be underway. This will provide a full year of gathering the information needed to complete the inventory.

F. <u>New Business</u>

16. 2022 CONSUMER CONFIDENCE REPORTS

A. LOUISA COUNTY WATER AUTHORITY / TOWN OF LOUISA

B. ZION CROSSROADS

The Board reviewed the Louisa County Water Authority / Town of Louisa and the Zion Crossroads 2022 Consumer Confidence Reports.

17. BOWLERS MILL – CONDITIONAL OPERATION AND MAINTENANCE CERTIFICATE

The engineer and Authority staff are working to request the Department of Conservation and Recreation to remove the specific language and deadlines for the Alteration Permit Application and Alteration construction from the Conditional Permit. Staff and the engineers will be meeting on

Monday, June 19, 2023, to craft a letter reminding DCR that the work to meet current regulations will commence once the approved funding has been released to the County of Louisa.

18. DRAIN GRATE FOR LOUISA REGIONAL WWTP FROM SLUDGE RECEIVING STATION TO MANHOLE

The Board was informed that septic haulers continue to allow septage to overflow the septage receiving station. When this happens, as much as possible is shoveled into the septage receiving station and the rest is hosed into the grass. A "French-drain" would allow for the septage to be hosed into a trough and flow to a manhole, preventing pollution issues in and around the Regional WWTP. The costs would be charged to the Town of Louisa and the County of Louisa through their monthly bill, split 50/50 between the owners in the next fiscal year.

The Board discussed the potential of rainwater entering the "French-drain". The General Manager stated that she would look into ways of minimizing rainwater entering the treatment process through the "French-drain".

Upon completion of the discussion, Mr. Wilson made a motion to authorize the installation of a "French-drain" at the Louisa Regional Wastewater Treatment Plan. The motion was seconded by Mr. Smith and carried 7-0.

19. SPRING CREEK WELL #3

The Board reviewed the cost to replace the well pump motor for Spring Creek Well #3. Royall Pump and Well Company, Inc. have submitted the warranty information, but did not feel the pump company would warranty rock being drawn into the pump, locking up the motor.

Upon completion of the review, Mr. Kies made a motion to approve the cost of $25,973.26 to replace the pump motor. The motion was seconded by Mr. Smith and carried 7-0.

20. FIRE HYDRANT DAMAGE

The General Manager informed the Board that a contract mower for VDOT ran over two Louisa County Water Authority fire hydrants. A passing vehicle was struck by four flying parts that blew out the mower shoot. An insurance claim has been filed.

21. DISCUSSION – REPLACEMENT OF THOMAS JEFFERSON ELEMENTARY SCHOOL PUMP STATION

The Thomas Jefferson Elementary School pump station is old and in need of repairs. The problem is that due to its age, parts are in short supply. We had Commonwealth Engineering conduct a site visit to recommend how we should proceed with some needed repairs and his recommendation was to replace the pump station. The General Manager stated that this time she would not recommend replacing the pump station due to discussion of development that may require an upgrade of the pump station.

Mr. Smith pointed out #9 on the contract to be considered when signing contracts in the future.

G. Reports

H. General Manager's Report

● **May levels**: At the end of May the static well levels are down approximately .4 of a foot from the end of April 2023 levels. From May 2022 to May 2023, the well levels are down approximately 1 foot.

The smaller table shows static well levels located nearer to the production wells. These levels are down approximately .5 of a foot from the end of April 2023 levels. From May 2022 to May 2023, the well levels are down approximately 21.5 feet.

As of June 13, 2023, the Department of Environmental Quality Drought website is indicating a drought watch for the entire region. Groundwater is in a drought warning and streamflow is in a drought emergency. Normal conditions exist for precipitation and reservoir levels.

● The current past-due listing is down to $5,326.46 from the past-due listing provided in the General Manager's Report, which reported the past-due balance of $5,561.47.

● With the help of Cindy King, Public Relations, Social Media, and Marketing Coordinator we developed a new logo.

● With the help of Mr. Foster, Authority staff has chosen Elavon for our online payments. No fees to the Authority. If customers choose to use the service, they will be assessed a convenience fee.

●In observance of Juneteenth Day and Independence Day, the Authority business office will be closed Monday June 19, 2023, and Monday and Tuesday July 3rd and 4th, 2023. All facilities will be manned with the minimum required man-hours to meet permit regulations.

I. Committees

Personnel Committee – Mary has indicated that she will finalize the edits to the Employee Handbook before retiring on Thursday of this week. Danielle and I are inching closer to the completion of the work on the Job Descriptions.

J. Short Notice Items

K. Closed Session

22. CLOSED SESSION PURSUANT TO VA. CODE SECTION 2.2-3711(A)(1) TO DISCUSS AND CONSIDER PERSONNEL MATTERS; INCLUDING THE DISCIPLINE, APPOINTMENT, ASSIGNMENT, PERFORMANCE, AND SALARIES OF SPECIFIC APPOINTEES AND EMPLOYEES.

23. CLOSED SESSION PURSUANT TO VA. CODE SECTION 2.2-3711(A)(3) DISCUSSION OR CONSIDERATION OF THE ACQUISITION OF REAL PROPERTY FOR A PUBLIC PURPOSE, OR OF THE DISPOSITION OF PUBLICLY HELD REAL PROPERTY, WHERE DISCUSSION IN AN OPEN MEETING WOULD ADVERSELY AFFECT THE BARGAINING POSITION OR NEGOTIATING STRATEGY OF THE PUBLIC BODY.

24. CLOSED SESSION PURSUANT TO VA. CODE SECTION 2.2-3711(A)(7) CONSULTATION WITH LEGAL COUNSEL AND BRIEFINGS BY STAFF MEMBERS OR CONSULTANTS PERTAINING TO ACTUAL OR PROBABLE LITIGATION, WHERE SUCH CONSULTATION OR BRIEFING IN OPEN MEETING WOULD ADVERSELY AFFECT THE NEGOTIATING OR LITIGATING POSTURE OF THE PUBLIC BODY.

Mr. Smith made a motion to close the regular open meeting and immediately reconvene in executive closed session for discussion or consideration of personal matters; including the discipline, appointment, assignment, performance, and salaries of specific appointees and employees, the acquisition of real property for a public purpose, or of the disposition of publicly held real property, where discussion in an open meeting would adversely affect the bargaining position or negotiating strategy of the public body, and consultation with legal counsel and briefings by staff members or consultants pertaining to actual or probable litigation, where such consultation or briefing in open meeting would adversely affect the negotiating or litigation posture of the public body. The motion was seconded by Mr. Hardy and carried 7-0.

RETURN TO OPEN MEETING:

Chairman Foster closed the closed session and immediately reconvened in regular open meeting at 7:50 pm.

CERTIFY:

Mr. Foster read the following statement prior to the vote to certify the closed session.

"Pam will now poll members to certify that, to the best of your knowledge, only public business matters lawfully exempted from the open meeting requirements under the Virginia Freedom of Information Act, and as identified in the motion for which the closed meeting was convened, were discussed, and considered by the Board. If any member believes that the Board varied from the purpose stated for the closed meeting, please state so and the reason prior to casting the vote." A roll call vote was requested with the following results:

Mr. Foster	YES
Mr. Smith	YES
Mr. Filer	YES
Mr. Hardy	YES
Mr. Kies	YES
Mr. Morgan	YES
Mr. Wilson	YES

The motion was carried 7-0.

Mr. Smith made a motion to authorize the budgeted 5% increase to all employees effective on July 1, 2023. The motion was seconded by Mr. Filer and carried 7-0.

Mr. Filer made a motion to authorize full-time positions for the two part-time office positions. The motion was seconded by Mr. Kies and carried 7-0.

Next meeting date - The next business meeting is scheduled for July 12, 2023.

L. Adjournment

THERE BEING NO FURTHER BUSINESS, Mr. Hardy made a motion to adjourn at 7:52 pm. The motion was seconded by Mr. Wilson and carried 7-0.

BY ORDER OF:

Judson Foster
Chairman
LOUISA COUNTY WATER AUTHORITY